

23SMCV03955 23SMCV03955

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

August

11, 2026

CASE NUMBER

23SMCV03955

MOTIONS

Demurrer

and Motion to Strike Second Amended Cross-Complaint

MOVING PARTIES

Cross

Defendants Kamran Younesi and Shawn Mehran

OPPOSING PARTY

Cross-Complainant

Jacob Deutsch

BACKGROUND

This case arises over a dispute concerning a wedding venue.

On August 23, 2023, Plaintiffs Kamran Younesi, Brandon Younesi, and Serina Younesi ("Plaintiffs") filed suit against Defendants Jacob Deutsch; Lazben Investment Company; Benjamin A. Deutsch and Andrew M. Deutsch, as trustees of the N.D. – L.M. Deutsch Trust under agreement dated December 17, 1973 and as trustees of the E.S.D. – Lawrence M. Deutsch Trust under agreement dated December 17, 1973, alleging four causes of action for (1) breach of contract; (2) fraud in the inducement/concealment; (3) conversion; (4) intentional infliction of emotional distress; and (5) negligent infliction of emotional distress.

Defendant Jacob Deutsch ("Deutsch") subsequently cross-complained. The operative Second Amended Cross-Complaint ("SAXC") against Kamran Younesi aka Kami Younesi, Sawn Mehiran, and Ariel Becker ("Cross-Defendants") alleges seven causes of action as follows:

1.

Fraud and deceit (intentional misrepresentation)

2.

Fraud and deceit (promissory fraud)

3.

Negligent misrepresentation

4.

Intentional trespass to private property

5.

Negligent trespass to private property

6.

Negligence

7.

Breach of written contract

Cross-Defendants now demur to the first, second, third, fifth, and sixth causes of action for failure to state facts sufficient to constitute a cause of action and uncertainty pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), respectively.

Cross-Defendants also move to strike the request for punitive damages, attorneys' fees, and emotional distress and medical damages.

Deutsch opposes both motions and Cross-Defendants reply.

REQUEST
FOR JUDICIAL NOTICE

Deutsch requests judicial notice of
the following:

Exhibit 1 — The April 8, 2026 Minute Order of
this Court. The Minute Order of this Court entered April 8, 2026 in this
action, captioned "Ruling on Submitted Matter," comprising twenty-three pages.
A true and correct copy is attached hereto as Exhibit 1.

Exhibit 2 — Cross-Defendants' February 2, 2026
Demurrer to the First Amended Cross-Complaint and the papers filed and served
therewith. Cross-Defendants' Demurrer to the First Amended Cross-Complaint,
filed in this action on February 2, 2026, together with the papers filed and
served therewith, namely the Notice of Demurrer and Demurrer, the Memorandum of
Points and Authorities, and the Declaration of Nilou A. Zakariaie and the
exhibits attached thereto. Those exhibits include a letter dated August 13, 2025
from Nilou A. Zakariaie, Esq. of Zakariaie & Zakariaie to Elan J. Dunaev,
Esq. of EJD Law Group, APC, which letter appears at pages 48 through 50 of
Exhibit 2 as attached hereto and is itself internally paginated as Pages 1
through 3. A true and correct copy of the February 2, 2026 filing is attached
hereto as Exhibit 2.

Judicial notice may be taken
of records of any court in this state.

(Evid. Code, § 452, subd. (d)(1).)

Because the above exhibits are part of the Court's record for this case,
the Court may take judicial notice of them.

(Ibid.) However, “while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files. Courts may not take judicial notice of allegations in affidavits, declarations and probation reports in court records because such matters are reasonably subject to dispute and therefore require formal proof.” (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882 [cleaned up].)

Accordingly, the Court takes judicial notice of the existence, filing, and legal implications of Exhibits 1 and 2, but not the absolute truth of the allegations or other hearsay statements contained therein.

ANALYSIS

I.

DEMURRER

“It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In testing the sufficiency of a cause of action, a court accepts “[a]s true all material facts properly pled and matters which may be judicially noticed but disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (290 Division (EAT), LLC v. City & County of San Francisco (2022) 86 Cal.App.5th 439, 450 [cleaned up]; Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280 [“in considering the merits of a demurrer, however, “the facts alleged in the pleading are deemed to be true, however improbable they may be”].)

Further, in ruling on a demurrer, a court must “liberally construe” the allegations of the complaint “with a view to substantial justice between the parties.” (See Code Civ. Proc., § 452.) “This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant.” (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

In summary, “[d]etermining whether the complaint is sufficient as against the demurrer on the ground that it does not state facts sufficient to constitute a cause of action, the rule is that if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged.” (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

A.

UNCERTAINTY

“[D]emurrers for uncertainty are disfavored.” (Lickiss v. Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125, 1135.) “A demurrer for uncertainty will be sustained only where the pleading is so bad that the responding party cannot reasonably respond - i.e., [a party] cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against [the party].” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 7:85, p. 45, emphasis in original.)

As such, where a demurrer is made upon the ground of uncertainty, the demurrer must distinctly specify exactly how or why the pleading is uncertain, and where such uncertainty appears by reference to page and line numbers. (See Fenton v. Groveland Comm. Services Dist. (1982) 135 Cal.App.3d 797, 809 [“Generally, the failure to specify the uncertain aspects of a complaint will defeat a demurrer based on the grounds of uncertainty”].)

Although the Demurrers are brought as to all causes of action (first, second, third, fifth, and sixth) in part on the ground of uncertainty, the memorandum makes uncertainty argument only as to the fifth cause of action for negligent trespass.

As

for the fifth cause of action for “negligent trespass,” as the Court previously noted, “Liability for trespass may be imposed for conduct which is intentional, reckless, negligent or the result of an extra-hazardous activity.” (Staples v. Hoefke (1987) 189 Cal.App.3d 1397, 1406.) Notwithstanding, trespass is an intentional tort, regardless of the actor’s motivation.

(Hensley v. San Diego Gas & Electric Co. (2017) 7 Cal.App.5th 1337, 1355.)

As

such, the Court previously sustained Cross-Defendants’ demurrer to the fifth cause of action for negligent trespass alleged in the First Amended Cross-Complaint (“FAXC”) on the grounds of uncertainty, as the conduct underlying both trespass causes of action was essentially the same. Notwithstanding, the Court granted Deutsch leave to amend to allege two theories of trespass – intentional conduct and negligent conduct, consistent with CACI No. 2000.

Deutsch
now alleges:

55. From

on or about September 20, 2022 to September 28, 2022, CROSSDEFENDANTS negligently trespassed upon and caused trespass upon the Property by negligently failing to supervise and control their event staff, vendors, contractors, agents, and guests, thereby permitting and/or causing the following physical intrusions upon the Property without Mr. DEUTSCH’s consent or legal authorization:

a.

CROSS-DEFENDANTS’ event staff, vendors, contractors and/or guests entered and used unauthorized indoor areas of the Property far beyond the scope of the expressly authorized limited areas;

b.

CROSS-DEFENDANTS’ event staff, vendors, and/or contractors erected or caused to be erected a raised platform structure on the surface of the Property’s landscaped grass, and drove or caused to be driven approximately ninety (90) three-foot metal stakes into the soil and subsurface of the Property, thereby physically intruding into Mr. DEUTSCH’s land and causing extensive damage to the underground plumbing and irrigation systems; and

c.

CROSS-DEFENDANTS' event staff, vendors, and/or contractors operated or caused to be operated multi-ton telehandler forklift(s) with extendable booms, each weighing approximately four (4) to six (6) tons, over and across the surface of the landscaped grass of the Property, thereby causing a physical intrusion by heavy industrial machinery upon Mr. DEUTSCH's real property and causing significant damage to the surface and subsurface thereof.

In

engaging in the foregoing conduct, CROSS-DEFENDANTS acted negligently, carelessly and in disregard of Mr. DEUTSCH's rights as the owner and possessor of the Property. A person of ordinary prudence who hosts an event of over 600 guests on another's real property, and who retains event staff, vendors, contractors, and agents to erect structures and bring heavy industrial equipment onto that property, would exercise reasonable care to ensure that their guests remain within authorized areas and that their staff, vendors, and contractors do not cause unauthorized physical intrusion into or damage to areas and infrastructure of the Property.

(SAXC ¶ 55.)

By contrast, Deutsch alleges in the fourth cause of action:

46. From

on or about September 20, 2022 to September 28, 2022, CROSSDEFENDANTS intentionally committed trespass upon and to the Property, without Mr. DEUTSCH's consent or legal authorization, including by:

a.

Intentionally entering and allowing their guests to enter and use indoor areas of the Property far beyond the scope of the expressly authorized limited areas, including the living room, dining room, kitchen, bar areas, and the upper floor containing bedrooms and private areas;

b.

Intentionally constructing or causing to be constructed a raised platform structure upon the surface of the Property's landscaped grass, which constitutes an unauthorized physical occupation and alteration of Mr. DEUTSCH's real property; and intentionally driving or causing to be driven approximately ninety (90) three-foot metal stakes into the soil and subsurface of the Property, which constitutes a deliberate physical intrusion beneath the surface

of Mr. DEUTSCH's land, causing extensive damage to the underground plumbing and irrigation systems therein; and c. Intentionally operating or causing to be operated multi-ton telehandler forklift(s) with extendable booms, each weighing approximately four (4) to six (6) tons, over and across the surface of the landscaped grass of the Property, which constitutes an intentional physical invasion of Mr. DEUTSCH's real property by heavy industrial machinery, causing significant physical damage to the surface and subsurface thereof.

(SAXC ¶ 46.)

Thus, the fifth cause of action is no longer duplicative of the fourth cause of action.

Cross-Defendants

argue that the fifth cause of action for negligent trespass is now duplicative of the sixth cause of action for negligence.

The Court disagrees. Regardless of whether they're premised upon the same alleged conduct, a cause of action for trespass is inherently different and requires different elements than a cause of action for negligence.

Damages

flowing from trespass stem from the intrusion itself, whereas the damages flowing from negligence are due to the damage construction of the raised platform and metal stakes, etc. caused to the property. (See, e.g. SAXC ¶ 62 [alleging property damage due to a raised platform structure, metal stakes, and forklifts carrying extendable booms on the property].)

Therefore,

the Court declines to sustain Cross-Defendants' demurrer to the fifth cause of action on the basis of uncertainty.

B.

FAILURE TO STATE A CAUSE OF ACTION

i.

Fraud

(Causes of Action 1-3)

"In a promissory fraud action, to sufficiently alleges [sic] defendant made a misrepresentation, the complaint must allege (1) the defendant made a

representation of intent to perform some future action, i.e., the defendant made a promise, and (2) the defendant did not really have that intent at the time that the promise was made, i.e., the promise was false.” (Beckwith v. Dahl (2012) 205 Cal.App.4th 1039, 1060.)

The elements for fraudulent misrepresentation are “(1) the defendant represented to the plaintiff that an important fact was true; (2) that representation was false; (3) the defendant knew that the representation was false when the defendant made it, or the defendant made the representation recklessly and without regard for its truth; (4) the defendant intended that the plaintiff rely on the representation; (5) the plaintiff reasonably relied on the representation; (6) the plaintiff was harmed; and (7) the plaintiff’s reliance on the defendant’s representation was a substantial factor in causing that harm to the plaintiff.” (Graham v. Bank of America, N.A. (2014) 226 Cal.App.4th 594, 605–606.)

“The essential elements of a count for negligent misrepresentation are the same [as intentional misrepresentation] except that it does not require knowledge of falsity but instead requires a misrepresentation of fact by a person who has no reasonable grounds for believing it to be true.” (Chapman v. Skype Inc. (2013) 220 Cal.App.4th 217, 230-231 (hereafter Chapman).) Like intentional misrepresentation, causes of action for negligent misrepresentation sound in fraud, and must also, therefore, be pleaded with particularity. (Ibid.)

“In California, fraud must be pled specifically; general and conclusory allegations do not suffice.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) “This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (Ibid.)

“One of the purposes of the specificity requirement is notice to the defendant, to furnish the defendant with certain definite charges which can be intelligently met.” (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384.) As such, less specificity is required “when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy[.]” (Ibid.) “Even under the strict rules of common law pleading, one of the canons was that less particularity is required when the

facts lie more in the knowledge of the opposite party.” (Ibid.)

Cross-Defendants demur to the first three (fraud-based) causes of action on the grounds that the allegations are conclusory and lack the requisite specificity. Deutsch alleges:

6. On or about April 30, 2022, CROSS-DEFENDANTS RENTERS and DOES 1 to 30, inclusive, by and through CROSS-DEFENDANT Mr. BECKER (collectively “CROSSDEFENDANTS”), contacted Mr. DEUTSCH to express CROSS-DEFENDANTS’ desire to rent from Mr. DEUTSCH the Property, for use for a wedding and multi-day festivities from September 20, 2022 to September 26, 2022. At that time, CROSS-DEFENDANTS by and through CROSS-DEFENDANT BECKER promised and represented orally during an in-person meeting with Mr. DEUTSCH at a restaurant called Baltaire in the Brentwood area of the City of Los Angeles, that CROSS-DEFENDANTS would act with a high degree of care to ensure that they and their guests would comply with the following:

a. Not to alter or damage the grounds of the Property;

b. Keep their music and voice amplification at a reasonable volume level per Mr. DEUTSCH’s guidance so that they could not be heard outside the walls and gates of the Property, and in compliance with legal limits so as inter alia not disturb neighbors,

c. Limit the number of their guests to no more than 600 individuals;

d. Use only the following limited areas of the Property:

i. “Mansion First Floor main foyer, and 2 bathrooms only[.]

ii. “Mansion upper lawn[.]

iii. “Mansion lake and view terrace[.]

iv. “Front driveway, side driveway (Up to 50 cars), and Horse Arena[.]”

e. Pay a fee of \$50,000 (Fifty Thousand Dollars) to use the authorized areas of the Property from September 20, 2022 to September 26, 2022 and also a security deposit of \$65,000 (Sixty-Five Thousand Dollars) to be applied to any damages resulting from CROSS-DEFENDANTS' use of the Property.

7. In reliance on said CROSS-DEFENDANTS' promises and representations, Mr. DEUTSCH entered into a written "Use Agreement for Events" with CROSS-DEFENDANTS RENTERS on or about April 30, 2022 ("Agreement"). As set forth in and under the terms of the Agreement, Cross-Defendants were granted the use of the certain real property addressed at 2565 Benedict Canyon, Beverly Hills (hereinafter "Property"), for use from September 20, 2022 to September 26, 2022, with specified terms and conditions including inter alia (emphasis added):

a. "The granting to Users [i.e., CROSS-DEFENDANTS] of the use of the Property is by permission only and is subject to the terms and conditions set forth in this Use Agreement" with only the following portions of the Property to be available for the use of CROSS-DEFENDANTS and their guests: i. "Mansion First Floor main foyer, and 2 bathrooms only[.]" ii. "Mansion upper lawn[.]" iii. "Mansion lake and view terrace[.]" iv. "Front driveway, side driveway (Up to 50 cars), and Horse Arena[.]

b. "[CROSS-DEFENDANTS] hereby understands that the Property is located in a residential neighborhood and that the terms and conditions of this Use Agreement must be strictly adhered to in order to eliminate inconvenience to neighbors and to minimize the impact of the Event upon the neighborhood. By signing this Agreement, User agrees to be bound by the terms and conditions of this Use Agreement."

c. "Music and Entertainment. [Mr. DEUTSCH] shall permit outdoor music and DJ. The volume of all music and microphones shall be set so that the music and voice amplification cannot be heard outside the walls and gates of the Property."

d. "Damage to the Property. [CROSS-DEFENDANTS] agrees to restore all interior and exterior areas used pursuant to this Agreement to its condition immediately prior to

[CROSS-DEFENDANTS's] use of such. [CROSSDEFENDANTS] shall be liable for and shall pay for any and all damages to the Premises or Property which is attributable to [CROSSDEFENDANTS's] use for the Event..."

e. That the fee for CROSS-DEFENDANTS to use the Property from September 20, 2022 to September 26, 2022 was \$50,000 (Fifty Thousand Dollars) and a security deposit of \$65,000 (Sixty-Five Thousand Dollars) which was agreed "to be applied to any damage to the Premises or Property for which [CROSS-DEFENDANTS] is liable under... this Agreement."

f. CROSS-DEFENDANTS agreed to "a maximum of 600 people. If the guest count for the event should exceed 600 people [CROSS-DEFENDANTS] will be billed an additional fee of \$550.00 per person."

g. CROSS-DEFENDANTS agreed that they "If [CROSS-DEFENDANTS] requires or goes beyond the operating hours" stated in the Agreement, then they would be obligated to an overtime fee "billed at \$1,500 per hour."

h. CROSS-DEFENDANTS agreed that they "shall conform in all respects to the provisions and regulations of all federal, state and municipal laws and ordinances, or any local authority which may be applicable in the circumstances, and shall indemnify (including the payment of attorneys' fees and costs), ... and hold [Mr. DEUTSCH] harmless against all allegations, charges, citations and/or penalties incurred by reason of any violation of any such laws, provisions, or regulations. [CROSS-DEFENDANTS] shall be solely responsible for obtaining all permits, insurance and disclosures; and to abide by all regulations, codes and safety as required by LAPD, ... and any other laws, statutes or ordinance which may pertain to or regulate [CROSS-DEFENDANTS'] Use [of the Property]."

8. In violation of CROSS-DEFENDANTS' promises and representations and the express terms and conditions of the Agreement, CROSS-DEFENDANTS:

a. Played amplified music far in excess of reasonable levels and exceeded the legal noise level. Although Mr. DEUTSCH repeatedly warned CROSSDEFENDANTS that their volume of music was excessive and therefore to lower the volume of their music, said CROSS-DEFENDANTS refused and verbally assaulted him and his father Lawrence Deutsch who told the

CrossDefendants that the police would eventually come if they did not comply.

As a result of CROSS-DEFENDANTS's continuous generation of excessively loud and deafening music, a complaint was filed by a neighbor and the police subsequently arrived and informed CROSS-DEFENDANTS that they could not play the music outside for the duration of a wedding celebration. As a consequence, the party moved indoors and continued.

b. CROSS-DEFENDANTS violated the limits of their authorized use of the Property, CROSS-DEFENDANTS and their guests trespassed by entering and using the indoors of the Property far beyond the expressly authorized limited areas. CROSS-DEFENDANTS and their guests also went into the living room, dining room, kitchen, bar areas, as well as going to the upper floor which contains the bedrooms and private areas intended exclusively for the actual residents of the Property. As a result of these trespasses to unauthorized areas of the Property by CROSS-DEFENDANTS and their guests, damage was caused to the floors and a glass table, among other items, in an amount exceeding \$6,250. Although written demand has been made for these damages, CROSS-DEFENDANTS have failed and refused to pay this amount.

c. CROSS-DEFENDANTS violated the express maximum limit 600 guests by over 100 additional guests. As a result of this violation, CROSSDEFENDANTS are liable for an additional \$550 for each of the 100 excess guests, for the amount due \$55,000. Although written demand was made for the excess usage, CROSS-DEFENDANTS have failed and refused to pay this amount.

d. CROSS-DEFENDANTS caused damage to the outdoor grass and breakage of the plumbing of the Property, with damages in excess of \$85,000. Although written demand was made for said damages, CROSSDEFENDANTS have failed and refused to pay this amount.

e. CROSS-DEFENDANTS violated the overtime requirement for their use of the Property on September 24, 2022 by going beyond the midnight end time by continuing to remain on and use the Premises until 3:00 a.m., for which CROSS-DEFENDANTS incurred an excess usage billed at \$1,500 per hour per the Agreement. Moreover, CROSS-DEFENDANTS overstayed the term by failing to vacate the Premises until September 28, 2022, 10:00 a.m., for an excess usage of 42 hours billed at \$1,500 per hour, for a combined total of \$67,500. Although demand was made for the excess usage fee, Cross-Defendants have failed and refused to pay this amount.

f. As a result of CROSS-DEFENDANTS' overstay on the Property by two (2) days and failure to timely vacate the Property, Mr. DEUTSCH was unable to provide the Property to a third-party renter and thus suffered lost profits of approximately \$70,000.

9. CROSS-DEFENDANTS owed to Mr. DEUTSCH

independent common law duties that exist wholly apart from and independent of any contractual relationship between the parties. These duties include, without limitation: (1) the general duty under California common law not to physically damage, destroy, or cause injury to another's real property and the improvements and systems thereon; (2) the duty of reasonable care owed by any person who undertakes to operate heavy industrial equipment on another's land to do so without causing physical injury to that land, its underground infrastructure, and its improvements; and (3) the duty of any person who undertakes to drive large metal objects into the soil of another's property to do so with reasonable care so as not to cause physical injury to underground utilities, plumbing, and irrigation systems beneath the surface. These duties arise from principles of tort law applicable to all persons — including those who happen also to be parties to a contract — and do not depend upon, arise from, or merely restate any obligation set forth in the Agreement.

10. CROSS-DEFENDANTS breached these

independent common law duties by committing the following acts:

a. CROSS-DEFENDANTS erected and constructed a

raised platform structure on the landscaped grass of the Property covering an area of approximately 100 feet by 200 feet. In connection with the erection of said platform, CROSS-DEFENDANTS drove approximately ninety (90) large metal stakes, each approximately three (3) feet in length, by sledgehammer deep into the ground and soil of the Property's landscaped grass areas. The physical act of forcibly driving approximately ninety (90) three-foot metal stakes into the ground is an act of physical intrusion into and injury to real property that gives rise to liability in tort under California law independently of any contract. CROSS-DEFENDANTS' driving of said metal stakes into the ground caused extensive and severe physical damage to the underground plumbing, pipes, and irrigation systems of the Property, causing structural harm to the Property's infrastructure. The resulting damage to the underground plumbing and irrigation systems is in excess of \$85,000.

b. CROSS-DEFENDANTS operated and drove multi-ton vehicles and heavy industrial equipment, specifically including telehandler forklift(s) with extendable booms, each weighing approximately four (4) to six (6) tons, directly over and across the landscaped grass areas of the Property across approximately 300 feet by 300 feet. The operation of multi-ton industrial vehicles over the surface of another's landscaped property is an act that a person of ordinary prudence would recognize as posing an obvious and unreasonable risk of physical injury to the land, its surface, and its underground systems. CROSSDEFENDANTS' operation of said multi-ton telehandler(s) over the landscaped grass caused significant and extensive physical damage to the grass, soil, landscaping, and underground sprinkler and irrigation systems of the Property.

c. CROSS-DEFENDANTS' foregoing conduct — i.e., driving approximately ninety (90) three-foot metal stakes into the ground to construct the raised platform and operating multi-ton telehandler forklift(s) over the landscaped grass and thereby physically altering, damaging, or destroying approximately 110,000 square feet (i.e., over 2.5 acres) of the Property's grounds — each independently constitute violations of common law duties owed by CROSS-DEFENDANTS to Mr. DEUTSCH. These are not duties that arise from or depend upon the Agreement. The duty not to physically drive metal stakes into another person's ground, puncturing underground pipes and irrigation lines, and the duty not to operate multi-ton industrial equipment over another person's land without their knowledge or consent, are duties imposed by California tort law upon all persons, regardless of whether any contract exists. CROSS-DEFENDANTS' breach of these independent common law duties caused Mr. DEUTSCH physical damage to his real property, underground plumbing, and irrigation infrastructure in an amount in excess of \$85,000, for which CROSS-DEFENDANTS are jointly and severally liable.

11. As a proximate result of CROSS-DEFENDANTS' actionable misconduct, Mr. DEUTSCH has incurred economic damages in excess of \$225,750 as set forth in the written invoice dated October 10, 2022, a true and correct copy of which is attached hereto as Exhibit "A".

13. On or about April 30, 2022, CROSS-DEFENDANTS by and through CROSS-DEFENDANT Mr. BECKER contacted Mr. DEUTSCH to express CROSS-DEFENDANTS' desire to rent from Mr. DEUTSCH the Property, for use for a wedding and multi-day festivities from September 20, 2022 to September 26, 2022. At that time, CROSS-DEFENDANTS by and through CROSS-DEFENDANT BECKER orally represented to Mr. DEUTSCH during an in-person

meeting with him at a restaurant called Baltaire in the Brentwood area of the City of Los Angeles, that CROSS-DEFENDANTS would act with a high degree of care to ensure that they and their guests would comply with the following:

a. Not to alter or damage the grounds of the Property;

b. Keep their music and voice amplification at a reasonable volume level per Mr. DEUTSCH's guidance so that they could not be heard outside the walls and gates of the Property, and in compliance with legal limits so as inter alia not disturb neighbors,

c. Limit the number of their guests to no more than 600 individuals;

d. Use only the following limited areas of the Property:

i. "Mansion First Floor main foyer, and 2 bathrooms only[;]

ii. "Mansion upper lawn[;]

iii. "Mansion lake and view terrace[;]

iv. "Front driveway, side driveway (Up to 50 cars), and Horse Arena[.]"

e. Pay a fee of \$50,000 (Fifty Thousand Dollars) to use the authorized areas of the Property from September 20, 2022 to September 26, 2022 and also a security deposit of \$65,000 (Sixty-Five Thousand Dollars) to be applied to any damages resulting from CROSS-DEFENDANTS' use of the Property.

14. Said representations made by said CROSS-DEFENDANTS were in fact false. The true facts were that said CROSS-DEFENDANTS intended to (1) violate the limits of their authorized use of the Property by allowing themselves and their guests to trespass by entering and using indoor areas of the Property far beyond the scope of the expressly authorized limited areas; (2) continuously play amplified music far in excess

of reasonable levels and exceed the legal noise level and ignore Mr. DEUTSCH's warnings to turn down the volume; (3) have substantially more than 600 guests by over 100 additional guests; (4) cause physical damage to the Property, including by constructing a raised platform, forcibly driving approximately ninety (90) three-foot metal stakes into the soil of the Property and operating multi-ton telehandler forklift(s) weighing approximately four (4) to six (6) tons over the landscaped grass; (5) violate the overtime requirement for their use of the Property and over-stay the term by failing to vacate the Property until September 28, 2022; and (6) by over-staying and failing to timely vacate the Property, prevent Mr. DEUTSCH from being able to provide the Property to another third party renter.

15. CROSS-DEFENDANTS, at the time said representations were made by them, knew said representations to be false and made them with the intention to deceive and defraud Mr. DEUTSCH to obtain his consent to allow them to rent the Property. The fact that CROSSDEFENDANTS arrived at the Property with prearranged industrial heavy equipment — specifically including multi-ton telehandler forklift(s) with extendable booms and approximately ninety (90) three-foot metal stakes for driving into the ground — demonstrates that the plan to physically alter and damage the Property through these acts was formed prior to the event, and therefore prior to and at the time the representations were made to Mr. DEUTSCH. A person who plans in advance to transport and deploy multi-ton industrial equipment and ninety metal stakes to drive into the ground of another's property does not simultaneously hold a genuine belief that they will not alter or damage that property. CROSSDEFENDANTS' representations to the contrary were therefore knowingly false when made.

16. Mr. DEUTSCH was ignorant of the falsity of CROSS-DEFENDANTS' representations and believed them to be true at the time these representations were made by them and acted in actual and justifiable reliance on them. Had Mr. DEUTSCH known the truth that CROSS-DEFENDANTS in fact intended to engage in the actionable misconduct alleged hereinabove, Mr. DEUTSCH would not have given his consent to allow them to rent the Property.

(SAXC ¶¶ 6-16.)

Although the SAXC specifically alleges the who (Becker, on behalf of all cross-defendants), what (specific terms of the venue rental), when (April 30, 2022), where and how

(orally, at an in-person meeting with Deutsch at the Baltaire restaurant) of the alleged misrepresentations, it still does not adequately allege specific facts regarding Cross-Defendants' knowledge of falsity or other fraudulent intent at the time the promises were allegedly made.

Rather, the SAXC alleges only that the fact that Cross-Defendants subsequently showed up to the property with industrial equipment meant they never intended not to alter or damage the property, as agreed. But crucially, this demonstrates only that Cross-Defendants subsequently breached the agreement, not that they intended to at the time the promises were made. The Court cannot infer fraudulent intent at the time the promises were purportedly made merely from subsequent contractual breaches alone. That is insufficient to state a claim for fraud with requisite specificity.

Deutsch also alleges on information and belief that Cross-Defendants conspired ahead of time to violate the agreement. But allegations made "on information and belief" are generally insufficient to satisfy heightened pleading requirements "unless the facts upon which the belief is founded are stated in the pleading." (Dowling v. Spring Valley Water Co. (1917) 174 Cal.218, 221.)

Thus, there are insufficient specific factual allegations that Cross-Defendants intended to break their promises vis-à-vis the property at the time they were made. Therefore, the Court sustains Cross-Defendants' demurrer to the first, second, and third causes of action sounding in fraud.

ii.

Fifth Cause of Action – Negligent Trespass

The only arguments Cross-Defendants raise vis-à-vis the fifth cause of action are that it is uncertain and duplicative of the sixth cause of action for negligence. For the same reasons discussed above, the Court declines to sustain Cross-Defendants' demurrer to the fifth cause of action for failure to state facts sufficient to constitute a cause of action on this basis.

iii.

Sixth Cause of Action – Negligence

Cross-Defendants demur to the sixth cause of action on the ground that it impermissibly reframes contractual obligations as tort “duties.”

“A person may not ordinarily recover in tort for the breach of duties that merely restate contractual obligations. Instead, courts will generally enforce the breach of a contractual promise through contract law, except when the actions that constitute the breach violate a social policy that merits the imposition of tort remedies.” (Stop Loss Ins. Brokers, Inc. v. Brown & Toland Medical Group (2006) 143 Cal.App.4th 1036, 1041.) In Stop Loss, the court noted that the law imposes no duty on strangers to promptly process another’s data, and therefore the “duty” underlying the plaintiff’s claims sounded in the parties’ contractual relationship, as opposed to the public’s general duty of care.

Here, as to the sixth cause of action, Deutsch alleges:

61. CROSS-DEFENDANTS owed Mr. DEUTSCH independent common law duties of care that arise under California tort law and exist wholly apart from any duties imposed by the Agreement. These independent duties include: (1) the duty of any person who undertakes to physically alter another’s real property through the erection of structures and the driving of metal stakes into the ground to exercise reasonable care so as not to cause physical injury to that property’s underground infrastructure, plumbing, and irrigation systems; and (2) the duty of any person who undertakes to operate multi-ton industrial vehicles and heavy equipment on another’s real property to exercise reasonable care so as not to cause physical damage to the surface and subsurface of that property. These duties are imposed by California law upon all persons in the exercise of their activities generally — they do not arise from, and are not derived from, any contractual relationship.

(SAXC

¶ 61.)

Unlike the processing of another person’s data, a person does have a general duty of care not to damage or alter another person’s property. While these alterations may have also constituted contractual breaches, that does not negate the fact that an independent duty does arise in the tort context.

Therefore, the Court overrules

Cross-Defendants' demurrer to the sixth cause of action.

iv.

Standing

Cross-Defendants demur on the grounds that Deutsch lacks standing to assert property damage, as he alleges he does not own the property in question. Deutsch alleges:

1. CROSS-COMPLAINANT JACOB DEUTSCH ("Mr. DEUTSCH") was at all times relevant herein an individual residing within the City of Beverly Hills, County of Los Angeles, State of California. At all times relevant herein, the certain real property addressed at 2565 Benedict Canyon, Beverly Hills (hereinafter "Property") was owned by Lazben Investment Company and subsequently LM Deutsch Trust. Mr. DEUTSCH was at all relevant times the lawful possessor of the Property and the duly authorized leasing agent for the Property, with full authority to lease, manage, and enter into use agreements with respect to the Property on behalf of the respective owners thereof. All acts of Mr. DEUTSCH alleged herein, including his entry into the Agreement with CROSS-DEFENDANTS, were performed in his capacity as lawful possessor and authorized leasing agent of the Property.

(SAXC

¶ 1.)

Although the SAXC does not allege that Deutsch owns the property, it does allege a possessory interest in the property. Further, "An agent acting on behalf of a principal might have standing to sue [...] if the agent has some beneficial interest in the subject matter." (Income Estate LLC v. Perez (2025) 117 Cal.App.5th Supp.1, 340 Cal.Rptr.3d 145, 150.) The SAXC also alleges that Deutsch was "the duly authorized leasing agent for the Property" and "at all relevant times the lawful possessor of the Property[.]"

Therefore, the Court declines to sustain the demurrer for lack of standing.

II.

MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof.

(Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

a.

Punitive Damages

In ruling on a motion to strike punitive damages, “judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (*College Hosp., Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) Per Civil Code section 3294, a plaintiff must allege that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) As set forth in the Civil Code,

(1)

“Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) “Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c)(1)-(3),
emphasis added.)

Further, a plaintiff must
assert facts with specificity to support a conclusion that a defendant acted
with oppression, fraud or malice. To
wit, there is a heightened pleading requirement regarding a claim for punitive
damages. (See *Smith v. Superior Court*
(1992) 10 Cal.App.4th 1033, 1041-1042.)

“When nondeliberate injury is charged, allegations that the defendant’s
conduct was wrongful, willful, wanton, reckless or unlawful do not support a
claim for exemplary damages; such allegations do not charge malice. When a defendant must produce evidence in
defense of an exemplary damage claim, fairness demands that he receive adequate
notice of the kind of conduct charged against him.” (*G. D. Searle & Co.*
v. Superior Court (1975) 49 Cal.App.3d 22, 29 [cleaned up].) In *Anschutz Entertainment Group, Inc. v.*
Snepp, the Court of Appeal noted that the plaintiffs’ assertions related to
their claim for punitive damages were “insufficient to meet the specific
pleading requirement.” (*Anschutz*
Entertainment Group, Inc. v. Snepp (2009) 171 Cal.App.4th 598, 643
[plaintiffs alleged “the conduct of Defendants was intentional, and done
willfully, maliciously, with ill will towards Plaintiffs, and with conscious
disregard for Plaintiff’s rights. Plaintiff’s injuries were exacerbated by the
malicious conduct of Defendants. Defendants’ conduct justifies an award of
exemplary and punitive damages”]; see also *Grieves*
v. Superior Court (1984) 157 Cal.App.3d 159, 166 [“The mere allegation an
intentional tort was committed is not sufficient to warrant an award of
punitive damages. Not only must there be
circumstances of oppression, fraud, or malice, but facts must be alleged in the
pleading to support such a claim”].)

Moreover, “the imposition of
punitive damages upon a corporation is based upon its own fault. It is
not imposed vicariously by virtue of the fault of others.” (*City*
Products Corp. v. Globe Indemnity Co. (1979) 88 Cal.App.3d 31, 36.)
“Corporations are legal entities which do not have minds capable of
recklessness, wickedness, or intent to injure or deceive. An award of
punitive damages against a corporation therefore must rest on the malice of the
corporation’s employees. But the law does not impute every employee’s
malice to the corporation. Instead, the punitive damages statute requires
proof of malice among corporate leaders: the officers, directors, or

managing agents.” (Cruz v. Home Base (2000) 83 Cal.App.4th 160, 167 [cleaned up].)

Here, as discussed above, because the SAXC does not adequately allege fraud with requisite specificity, the Court similarly grants Cross-Defendants’ motion to strike punitive damages.

b.

Attorneys’ Fees

Attorneys’ fees may generally only be recovered pursuant to a contractual or statutory provision. (Civ. Code, § 1717.) Here, Deutsch seeks attorneys’ fees incurred in connection with the causes of action for trespass, negligence, breach of contract, and breach of implied covenant.

As previously discussed in connection with the demurrer to the FAXC, Deutsch’s attorneys’ fees are generally contractually allowable. Notwithstanding, Cross-Defendants move to strike attorneys’ fees sought for “tort of another.” Deutsch does not oppose the request.

As such, the Court strikes Deutsch’s request for attorneys’ fees only insofar as they are premised upon a “tort of another.”

c.

Emotional Distress Damages

Cross-Defendants argue that emotional distress damages are not allowable on what is essentially a contract dispute. As discussed above, Deutsch adequately alleges trespass and negligence causes of action sounding in tort, entitling him to non-economic damages.

III.

LEAVE TO AMEND

A plaintiff has the burden of showing in what manner the complaint could be amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See The Inland Oversight Committee v. City of San Bernardino (2018) 27 Cal.App.5th 771, 779; PGA West Residential Assn., Inc. v. Hulven Int’l, Inc. (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment,

but also the factual allegations sufficient to state a cause of action or claim. (See *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.*, supra, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden by merely stating in the opposition to a demurrer or motion to strike that “if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend.” (See *Major Clients Agency v Diemer* (1998) 67 Cal.App.4th 1116, 1133; *Graham v. Bank of America* (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here, Deutsch only identifies additional facts to allege with respect to his possessory interests in the property and his emotional distress damages. Therefore, the Court denies Deutsch leave to amend the first three causes of action sounding in fraud, the request for punitive damages, or the attorneys’ fees to the extent they are premised upon a “tort of another.”

CONCLUSION AND ORDER

For the reasons stated, the Court sustains without leave to amend Cross-Defendants’ demurrer to the first, second, and third causes of action, but overrules Cross-Defendants’ demurrer to the fifth and sixth causes of action.

Further, the Court grants in part Cross-Defendants’ motion to strike and strikes Deutsch’s request for punitive damages and for attorneys’ fees to the extent they are premised upon the “tort of another” without leave to amend. The Court denies Defendants’ request to strike emotional distress damages.

Cross-Defendants shall file and serve an Answer or Answers to the SAXC on or before August 21, 2026.

Cross-Defendants shall lodge a proposed order in conformance with the Court’s ruling on or before August 21, 2026.

Cross-Defendants shall also provide notice of the Court’s ruling and file the notice with a proof of service forthwith.

DATED: August 11, 2026 _____/s/_____

Michael

E. Whitaker

Judge

of the Superior Court